

23STCV20228 23STCV20228

County: los-angeles

Division: Civil Law and Motion

Department: 514

Hearing date: 2026-08-25

Source URL:

https://www.lacourt.ca.gov/tentativeRulingNet/ui/main.aspx?casetype=civil&dept_date=LAM%2C514%2C08%2F25%2F2026

Source SHA-256: e1f4852e1efd56581f91861af5a5810de6fb2c70af82ff11f8f171dfce382b29

Case Number: 23STCV20228 Hearing Date: August 25, 2026 Dept: 514

Mondragon v.

Bodega Latina Corporation

23STCV20228

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Form

Interrogatories (Set Six)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Requests

for Production (Set Seven)

Plaintiff's Motion to Compel Defendant to Provide Further Responses to Requests

for Production (Set Nine)

Tentative Ruling

The motions to compel further responses to

Form Interrogatories (Set Six) and to Requests for Production (Set Nine) are

granted.

The motion to compel further responses to

Request for Production (Set Seven) is denied.

Plaintiff's requests for monetary sanctions

are granted in part and denied in part.

Background

In this matter, Plaintiff Anthony Mondragon alleges

("Plaintiff") that on April 29, 2023, he slipped and fell while shopping in a

supermarket owned, operated, or controlled by defendants.

Plaintiff filed the complaint in this action on August

23, 2023, naming as defendants Bodega Latina Corporation, Doe Store Manager,

and Does 1 through 100, and asserting causes of action for (1) premises

liability and (2) general negligence.

On September 15, 2023, Plaintiff amended the complaint to

name Chedraui USA, Inc. as Doe 1.

On October 16, 2023, Chedraui USA, Inc., also erroneously

sued as Bodega Latina Corporation ("Defendant"), filed an answer to the

complaint.

In April and May 2026, the Court, at the request of

Plaintiff, dismissed Doe Store Manager and Bodega Latina Corporation without

prejudice.

Currently before the Court and set for hearing on August 25,

2026, are three discovery motions, all filed on June 22: (1) Motion to Compel Defendant to Provide Further Responses to Form

Interrogatories (Set Six); (2) Motion to Compel Defendant to Provide Further

Responses to Requests for Production (Set Seven); and (3) Motion to Compel

Defendant to Provide Further Responses to Requests for Production (Set Nine).

On August 12, Defendant filed

oppositions. On August 18, Plaintiff

filed replies.

On each motion, Plaintiff requests monetary

sanctions.

Trial is set for February 8, 2027.

Legal Standard

“On receipt of a response to interrogatories, the propounding

party may move for an order compelling a further response if the propounding

party deems that any of the following apply: (1) An answer to a particular

interrogatory is evasive or incomplete. (2) An exercise of the option to

produce documents under Section 2030.230 is unwarranted or the required

specification of those documents is inadequate. (3) An objection to an

interrogatory is without merit or too general.”

(Code Civ. Proc., § 2030.300, subd. (a).)

Notice of a motion to compel further responses must be given

“within 45 days of the service of the verified response, or any supplemental

verified response, or on or before any specific later date to which the

propounding party and the responding party have agreed in writing.” (Id.,

subd. (c).)

A motion to compel further responses must be accompanied by a meet-and-confer

declaration and a separate statement or, in the discretion of the Court, a

“concise outline of the discovery request and each response in dispute.” (Id.,

subd. (b)(1) & (b)(2); Cal. Rules of Court, rule 3.1345.)

“The court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)

against any party, person, or attorney who unsuccessfully makes or opposes a

motion to compel a further response to interrogatories, unless it finds that

the one subject to the sanction acted with substantial justification or that

other circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2030.300, subd. (d).)

“On receipt of a response to a demand for inspection, copying,

testing, or sampling, the demanding party may move for an order compelling

further response to the demand if the demanding party deems that any of the

following apply: (1) A statement of compliance with the demand is

incomplete. (2) A representation of

inability to comply is inadequate, incomplete, or evasive. (3) An objection in the response is without

merit or too general.” (Code Civ. Proc.,

§ 2031.310, subd. (a).)

Notice of a motion to compel further responses must be given

“within 45 days of the service of the verified response, or any supplemental

verified response, or on or before any specific later date to which the

propounding party and the responding party have agreed in writing.” (Id.,

subd. (c).)

A motion to compel further responses must set forth specific

facts showing good cause for the discovery and must be accompanied by a meet-and-confer

declaration and a separate statement or, in the discretion of the Court, a

“concise outline of the discovery request and each response in dispute.” (Id.,

subd. (b)(1)-(3); Cal. Rules of Court, rule 3.1345.)

“[T]he court shall

impose a monetary sanction under Chapter 7 (commencing with Section 2023.010)

against any party, person, or attorney who unsuccessfully makes or opposes a

motion to compel further response to a demand, unless it finds that the one

subject to the sanction acted with substantial justification or that other

circumstances make the imposition of the sanction unjust.” (Code Civ. Proc., § 2031.310, subd. (h).)

In Chapter 7 of the

Civil Discovery Act, Code of Civil Procedure section 2023.030, subdivision (a)

provides, in pertinent part, that the court may impose a monetary sanction ordering that any person “engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” A “misuse of the discovery process” includes (among other things) failing to respond or to submit to an authorized method of discovery; making, without substantial justification, an unmeritorious objection to discovery; making an evasive response to a discovery request; disobeying a court order to provide discovery; and making or opposing, unsuccessfully, a motion to compel without substantial justification. (Code Civ. Proc., § 2023.010, subds. (d)-(h).)

Discussion

Plaintiff seeks further responses from Defendant to to one set of form interrogatories and two sets of requests for production. The Court addresses each in turn.

Form

Interrogatories (Set Six)

Plaintiff moves to compel further responses to Form Interrogatories (Set Six) 17.1, as it relates to Requests for Admissions (“RFAs”) Nos. 225-243.

In opposition,

Defendant states that in April, it inadvertently served a further response to

Form Interrogatory 17.1 as it related to an earlier set of RFAs, rather than

the RFAs at issue (Set Six). (Derflinger

Decl., ¶ 6.) On May 4, 2026, Defendant

acknowledged its error and promised to correct it. (Derflinger Decl., ¶ 7.) Nonetheless, Defendant did not serve a

further response to Form Interrogatory 17.1 as it relates to the RFAs at issue

before Plaintiff filed this motion (on June 22). Indeed, Defendant had not served a further

response by the time it filed its opposition (on August 12). (See Derflinger Decl., ¶ 8.) Defendant's counsel states that he "anticipates"

serving a further response prior to the hearing. (Ibid.)

As of the date

Plaintiff filed his reply (on August 18), Plaintiff states that no further

response had been received. (Reply, at

p. 3.)

The motion,

which is essentially unopposed, is granted for good cause shown.

Plaintiff's

request for sanctions is granted in part.

Defendant's failure to serve a further response – which it admits it

owes Plaintiff – for more than three months appears to be nothing more than

foot dragging and delay for the sake of delay.

It is not, on this record, substantially justified. There are no circumstances in the record that

would make the imposition of a sanction unjust.

In light of the

relatively straightforward nature of this motion, along with the economies of scale

associated with filing multiple, parallel discovery motions, the Court sets

sanctions in the amount of \$935, based on 2.5 hours of attorney work,

multiplied by counsel's reasonable billing rate for work of this nature of \$350

per hour, plus a \$60 filing fee.

(Salazar Decl., ¶ 26.)

Requests

for Production (Set Seven)

Plaintiff moves

to compel further responses to Requests for Production (Set Seven) Nos. 50-52.

Defendant opposes

the motion, arguing (among other things) that Plaintiff did not adequately meet

and confer with Plaintiff before filing this motion. (Opp., at p. 3.) Indeed, the meet-and-confer process with

regard to Defendant's further responses was, according to the declaration

attached to the moving papers, limited to one email. (Salazar Decl., ¶¶ 14-21.)

A party moving

to compel further responses to requests for production must file, with the

motion, a declaration establishing that the moving party has satisfied the

statutory requirement to meet and confer as set forth in Code of Civil

Procedure section 2016.040. (Code Civ.

Proc., § 2030.300, subd. (b)(1) & § 2031.3010, subd. (b)(2).)

Code of Civil

Procedure section 2016.040, as amended by the Legislature effective January 1,

2026, provides:

“A meet and

confer declaration in support of a motion shall state facts showing a

reasonable and good faith attempt, either in person, by telephone, or by

videoconference, to informally resolve each issue presented by the motion.”

(Code Civ.

Proc., § 2016.040, subd. (a).)

Plaintiff single

email does not satisfy this requirement.

On that basis, the motion is denied.

The Court need

not reach, and does not reach, the other arguments presented by the parties.

As the motion is

denied, so too is Plaintiff's request for sanctions. Defendant does not request sanctions.

Requests

for Production (Set Nine)

Plaintiff moves

to compel further responses to Requests for Production Nos. 55-65.

Defendant does

not oppose the motion. (Opp., at p. 4.)

For good cause

shown, the motion is granted.

Plaintiff's

request for sanctions is granted in part.

Defendant admits its failure to serve a further response is unexcused

and not, on this record, substantially justified. There are no circumstances in the record that

would make the imposition of a sanction unjust.

In light of the

relatively straightforward nature of this motion, along with the economies of scale

associated with filing multiple, parallel discovery motions, the Court sets

sanctions in the amount of \$935, based on 2.5 hours of attorney work,

multiplied by counsel's reasonable billing rate for work of this nature of \$350

per hour, plus a \$60 filing fee.

(Salazar Decl., ¶ 24.)

Conclusion

The Court GRANTS

the motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA,

Inc. to provide further responses to Form Interrogatories (Set Six).

The Court ORDERS

Defendant to serve code-compliant, verified, further responses, without

objections to Form Interrogatory 17.1 as it relates to Requests for Admission No.

225-243 by no later than September 15, 2026.

The Court DENIES the

motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to

provide further responses to Requests for Production (Set Seven).

The Court GRANTS the

motion of Plaintiff Anthony Mondragon to compel Defendant Chedraui USA, Inc. to

provide further responses to Requests for Production (Set Nine).

The Court ORDERS

Defendant to serve code-compliant, verified, further responses, without

objections to Requests for Production Nos. 55-65 by no later than September 15,

2026.

The Court GRANTS

IN PART Plaintiff's requests for sanctions.

The Court ORDERS

Defendant Chedraui USA, Inc. and its counsel of record Bordin Semmer LLP,

jointly and severally, to pay monetary sanctions to Plaintiff Anthony Mondragon

(through counsel) under the Civil Discovery Act in the total amount of \$1,870

(\$935 per motion multiplied by two motions) by no later than September 15,

2026.

Plaintiff is ORDERED to give notice.